



File No.: EXP202211375

RESOLUTION No.: R/00171/2023

Considering the complaint filed on September 25, 2022, with this Agency by Mr. A.A.A. against GOOGLE LLC, for not having properly addressed his request to exercise the rights established in Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure before GOOGLE LLC with NIF ***NIF.1 (hereinafter, the respondent), indicating that personal data is published in the search engine without his consent and requesting that they not be associated in the search results of the referenced URLs.

- ***URL.1

- ***URL.2

- ***URL.3

The respondent replied indicating that “We have decided not to remove these URLs, taking into account all relevant rights and interests related to the content. It seems that this content is related to work that you are still performing or that you have done recently. (...) According to the information available at this time, Google LLC has decided not to take action regarding these URLs.”

SECOND: On September 25, 2022, a complaint was received by this Agency from the respondent because their right to erasure regarding the URLs had not been addressed:

1. ***URL.4

2. ***URL.2

3. ***URL.5

4. ***URL.3

5. ***URL.6

6. ***URL.7

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The respondent has indicated that:

- Regarding URLs 1, 5, and 6, they have no record that the complainant has exercised the right to erasure over them.

- Regarding the remaining URLs, 2, 3, and 4, they refer to information related to his professional life.

“(...) it should not be overlooked that the information referred to by the disputed URLs is clearly related to Mr. A.A.A.'s professional activity as a candidate for ***POSITION.1 during the years 2020 and 2021. In particular, the search results subject to Mr. A.A.A.'s complaint refer to provisional lists of admitted candidates for a ***POSITION.1 call from just two years ago.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on December 13, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing, so that within ten working days it could present any allegations it deemed appropriate.

This entity, in summary, reiterated its allegations regarding URLs 1, 5, and 6, as there is no record of the exercise of erasure over them.

Regarding the remaining URLs, "(...) this party has re-examined the content of the web pages to which the disputed search results refer and has reconsidered its initial decision. Consequently, Google LLC has proceeded with the blocking requested by Mr. A.A.A."

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate, having provided a copy of several emails sent to the respondent exercising the right to erasure of several URLs, as well as a screenshot of the results that appear when entering their name in the Google search engine.

FIFTH: After granting a hearing to the respondent, they indicate, in summary, that "(...) Google LLC has blocked the URLs subject to Mr. A.A.A.'s complaint. The interested party now includes in his complaint search results that he never would have addressed to Google LLC prior to the initiation of the procedure."

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LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the GDPR; and Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure.

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procedure before any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the published links that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, this must be done when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right will persist even when the retention of the information published on the website to which the link directed is lawful and it was not previously or simultaneously deleted.”

As stated in the Supreme Court Judgment of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of the unity of the Constitution, the limits derived from the respect for other fundamental rights apply, among which the freedom of information proclaimed by Article 20 of the Constitution is of special relevance.”

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014, states the following:

Paragraph 28: “(...) by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, extracts,

records, and subsequently organizes it within the framework of its indexing programs, stores it on its servers, and, where appropriate, communicates and facilitates access to its users in the form of lists of search results. Since these operations are explicitly and unconditionally covered by Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also carries out the same operations with other types of information and does not distinguish between these and personal data.”

Paragraph 33: “However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework, and therefore must be considered responsible for such processing under the aforementioned Article 2, letter d.”

Paragraph 35: “On this particular point, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying that data on a webpage, and is added to it.”

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the internet search engine without resorting to the website's data controller, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), has stated:

“(…) data processing (…) carried out by the search engine operator may significantly affect the fundamental rights to respect for private life and the protection of personal data when the search carried out using that search engine is based on the name of a…”

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natural person, as this processing allows any internet user to obtain, through the results list, a structured view of the information related to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without such a search engine, would not have been interconnected or would have been very difficult to do so, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the individual is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a results list (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).

“The Court of Justice maintains that the removal of links from the results list based on the name of the affected natural person could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.”

“(…) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the results list obtained after a search carried out based on the name of a person links to web pages published by third parties that contain information related to this person, even in the case that this name or this information is not removed prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the operator of a search engine allows for a “name” to yield a results list that offers information about a person that may affect their private sphere. Once the individual has submitted their request for the deletion of their personal data to the search engine, it must examine the request and proceed, where appropriate, to delete the specific links from the results list, without the need to first or simultaneously approach the website owner.

It also follows from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that "the so-called 'right to digital oblivion', which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not protect the idea that each individual can construct a past to their liking, forcing web page editors or search engine operators to delete the processing of their personal data when associated with facts that are not considered positive."

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It does not justify that those who expose themselves publicly can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, "positioning" the results of Internet searches at their whim, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country. Equally relevant is the doctrine collected in the ruling of the Audiencia Nacional, dated June 21, 2019, which specifies, in its fifth legal basis, the following, in relation to the information related to the professional life of the interested party:

"(...) General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning a person's name and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the predominant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015."

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and inc v. AEPD and Mario Costeja" C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) it is more likely that the information will be relevant if it is related to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)"

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all its content is protected by the freedom of information - in this case, freedom of expression - but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or privacy of the person concerned and that are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information'" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

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Likewise, in order to assess the public relevance of the matter, it must be analyzed whether the

published information continues to be of general interest due to the time that has elapsed. Regarding this issue, the National Court has stated in its ruling dated November 8, 2017, the following:

“Furthermore, unlike the first link, an excessive amount of time has not passed between the date on which the cancellation request was made to the search engine and the date of the news publication. Indeed, since the date the news was published (August 2011) and the date the right to cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the circumstances of the case as previously stated, does not affect this conclusion.”

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: “Even an initially lawful processing of accurate data may, over time, become incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer relevant, or are excessive in relation to these purposes and the time elapsed.”

The Judgment of the Constitutional Court 89/2022, dated June 29, 2022, upholds the amparo appeal filed by the appellant and, by virtue of this, declares that their right to the protection of personal data has been violated, restoring them in their right and, to that end, declares the nullity of the judgment of Section Three of the Administrative Litigation Chamber of the Supreme Court, dated September 17, 2020, and the judgment of Section One of the Administrative Litigation Chamber of the National Court, dated December 14, 2018.

Said STC 89/2022 establishes in Legal Basis 5 “Resolution of the second complaint for violation of the fundamental right to be forgotten

(...) The appellant alleges the violation of the right to be forgotten due to infringement of the criteria for weighing the public relevance of what was disseminated and the time elapsed. The appellant indicates that these criteria were established in the STJUE Google Spain and in the STC 58/2018, dated June 4, and that the Supreme Court would have applied them incorrectly.

(...) A) The criterion of “the public relevance of what was disseminated.”

(...) It should be noted that the concept of “matters of public relevance” is a concept that this court has been considering as a prerequisite to appreciate the preponderant value of the public freedoms of information and expression under Article 20 of the Spanish Constitution, against the right to honor and personal and family privacy under Article 18.1 of the Spanish Constitution (among others, STC 49/2001, dated February 26, Legal Basis 6, and 216/2013, dated December 29, Legal Basis 5). This criterion was also used, as the appellant indicates, in the STC 58/2018, in which we spoke of the “right to freely communicate truthful information [Article 20.1 d) of the Spanish Constitution], which protects the dissemination of facts that deserve to be considered newsworthy because they refer to matters of public relevance that are of general interest due to the subjects they address or the individuals involved” (Legal Basis 6).

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In the present case, “the public relevance of what has been disseminated” is an element that has been taken into consideration, but not to determine the predominant value of the constitutional right to freedom of expression or the freedom of information of the person who has made the publication related to the appellant – a person whose identity is also unknown – or of the portal in which the opinions of users are inserted – a portal that is also based in the United States – but rather to justify that there is a predominant public interest in accessing the information. Thus, the Supreme Court explains that certain professional aspects of the appellant present a public interest that aligns with the interest of consumers and users in knowing and accessing publications that contain evaluations and opinions about professionals through the search engine.

To determine whether there exists such a superior public interest, it is appropriate to apply analogously the criteria already developed in our jurisprudence, in which we have determined that the existence of such interest may arise because the affected party is a public person or has acquired public notoriety,

and in this second case, public notoriety may have been achieved through the professional activity they engage in, or by habitually disseminating facts and events from their private life, or they may have acquired circumstantial prominence by being involved in events that hold that public relevance (SSTC 99/2002, May 6, FJ 7, and 23/2010, April 27, FJ 5). It is also possible that even if the affected party is not a public person nor has acquired public notoriety, there may still exist a public interest in accessing such information if it pertains to a matter of general interest (STC 216/2013, December 19, FJ 6):

b) (...) Once the public status of the appellant is ruled out, it must be determined whether there is an interest in accessing the information based on the subject matter in question. The fact that the information relates to the current professional life of the interested party is an element to consider, as highlighted by Google in its submissions, and as reflected in the guidelines on the implementation of the CJEU Google Spain ruling, from the Article 29 Data Protection Working Party, which establish that "the information is more likely to be relevant if it relates to the current professional life of the interested party." However, this fact is not decisive because, as those same guidelines indicate, "it will largely depend on the nature of the work itself and the public's interest in accessing that information through a search by their name" (commentary on criterion 5, page 17).

It is necessary to determine, first and foremost, whether access to what has been published contributes to the formation of a free public opinion (STC 49/2001, February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end and facilitate that citizens can freely form their opinions and reasonably participate in public affairs (STC 23/2010, April 27, FJ 3). If such interest exists, in any case, it would only extend to that communication whose knowledge is necessary for the real participation of citizens in collective life and that is not formally degrading (STC 110/2000, May 5, FJ 8).

(i) (...)

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(ii) Regarding the work developed, it cannot be considered that real estate promotion constitutes a professional activity that endows any publication related to any professional in that sector with public relevance. (...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as, even if the link obtained after a search for the name and surname of that person is removed, access can always be made through the website where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person. In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may diverge depending on whether it concerns processing carried out by a search engine manager or by the publisher of this webpage, given that, on the one hand, the legitimate interests justifying these processes may be different, and, on the other, the consequences of these processes on the interested party, and in particular on their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained after a search carried out based on a person's name, of a webpage and information contained therein relating to this person significantly facilitates the accessibility of such information to any internet user who conducts a search about the interested party and can play a decisive role in the dissemination of this information, it may constitute a greater interference with the fundamental right to respect for the private life of the interested party than the publication by the publisher of this webpage" (CJEU Google Spain, § 86 and 87).

All these circumstances, taken into consideration as a whole, lead us to conclude that in the present case it cannot be determined that access by this means to mere opinions and personal comments about the professional activity of private individuals, who are not public figures nor have gained notoriety through that professional activity, contributes per se to the formation of a free public opinion.

B) The time factor.

(...) Regarding the publications referred to by the judicial bodies, it is true that, from a strict point of view of temporality, they can be considered "current" on the date when Mr. J.L. submitted his cancellation request to the company Google. But the problem lies in the fact that they are not pertinent to support the current nature of the opinions published by the user on the complaint portals. (...) However, none of these comments make any reference to the information contained in the news articles that have been taken into account by the judicial resolutions to support the current nature of the published opinions and that refer to a criminal judicial procedure in which Mr. J.L. is allegedly involved. While such news about that criminal procedure may be current, and consequently may justify a higher public interest in accessing the same, the current nature does not transfer to the opinions expressed about the appellant on the complaint portals that do not concern those criminal proceedings.

Therefore, it can be concluded that the elements considered by the judgments here contested do not reveal the existence of a predominant public interest in accessing such information, to the extent of allowing the sacrifice of the appellant's right to be forgotten regarding the Google search engine.

(...)

FIFTH: The rights procedure is instructed as a consequence of the denial or lack of attention to any of the rights regulated in the data protection regulations, when the right exercised by the claiming party is not duly attended to or is denied with justification by the responding party within the established time frame for this.

In the present case, once the documentation in the file has been examined, it is observed:

- Regarding three of the claimed URLs,

1. ***URL.4

5. ***URL.6

6. ***URL.7

it has not been proven that, prior to the claim, a request for their removal was made to the responding party.

Consequently, the claim presented regarding those URLs should be dismissed.

- Regarding the three remaining URLs,

2. ***URL.2

3. ***URL.1

4. ***URL.3

In this case, according to the documentation in the procedure, the claiming party requested the removal of their personal data from the responding party, in relation to those URLs with the purpose of ensuring that their personal data is not linked to search results based on their name.

The responding party replied denying the request, considering that they refer to information related to their professional activity.

Once the allegations and the documentation submitted by the responding party have been examined, the claim was admitted for processing due to inferring a possible violation of the right to erasure and the right to be forgotten in internet searches.

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The responding party states that it has re-examined the content of the website referenced in the disputed search result and has reconsidered its initial decision, proceeding accordingly with the blocking requested by the claimant.

Therefore, with the new measures adopted by the responding party, the rights of the affected individual are duly restored and, consequently, the present claim is to be upheld on formal grounds as the request has been addressed out of time, without the need for additional actions to be taken.

Having regard to the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim filed by Mr. A.A.A. against GOOGLE LLC regarding the URLs

***URL.4

***URL.6

***URL.7

SECOND: TO UPHOLD on formal grounds the claim filed by Mr. A.A.A. against GOOGLE LLC.

However, the issuance of a new certification by said entity is not warranted, as the response has been issued out of time, without the need for additional actions to be taken by the responsible party, regarding the URLs

***URL.2

***URL.1

***URL.3

THIRD: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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